

Grandhi Aditya Seetha Ratna Deepti vs S.N.Naveen Kumar on 19 February, 2025

APHC010408132024

IN THE HIGH COURT OF ANDHRA PRADESH
AT AMARAVATI
(Special Original Jurisdiction)

[3397]

WEDNESDAY ,THE NINETEENTH DAY OF FEBRUARY
TWO THOUSAND AND TWENTY FIVE

PRESENT

THE HONOURABLE SRI JUSTICE VENUTHURUMALLI GOPALA
KRISHNA RAO

TRANS. CIVIL MISC.PETITION NO: 303/2024

Between:

Grandhi Aditya Seetha Ratna Deepti

...PETITIONER

AND

S N Naveen Kumar

...RESPONDENT

Counsel for the Petitioner:

1. K V L NARASIMHA RAO

Counsel for the Respondent:

1. SRIDEVI JAMPANI

The Court made the following:

ORDER:

The petitioner/wife herein filed the present petition under Section 24 of the Code of Civil Procedure, 1908, seeking to withdraw the F.C.O.P.No.148 of 2024 on the file of the V Additional District Judge-cum-Family Court Judge, Tirupati and transfer the same to the Senior Civil Judge, Tanuku, West Godavari District, for trial.

2. The case of the petitioner in brief is as follows:

I. The petitioner is the legally wedded wife of the respondent and the marriage of the petitioner with the respondent was performed on 17.05.2017 at Sri Dwaraka Residency, AC Kalyana Mandapam, near temple main road, Dwaraka Tirumala, West Godavari presently Eluru, as per the Hindu Rites and Caste Customs. The

petitioner/wife herein pleaded that, due to the matrimonial disputes between both the spouses, the petitioner/wife has been separately at her parents' house at Cherukuwada Village, Penugonda Mandal, West Godavari District.

The petitioner/wife further pleaded that, she lodged a complaint against the respondent/husband and his family members in Crime.No.133 of 2024, under Section 498-A of I.P.C. and under Sections 3 & 4 of Dowry Prohibition Act, 1961, before Penugonda Police Station, West Godavari District, the same is pending for investigation. The petitioner/wife further pleaded that, she filed a Maintenance Case vide M.C.No.47 of 2024, on the file of the Principal Junior Civil Judge-cum-Judicial Magistrate of First Class, Tanuku, West Godavari District, seeking monthly maintenance from the respondent/husband and she also filed a Domestic Violence Case vide DVC (S.R.No.9517 of 2024) under Section 12 of Domestic Violence Act, 2005, on the file of the II Additional Judicial Magistrate of First Class, Tanuku, West Godavari District and the said cases are pending for adjudication before the competent Courts at Tanuku.

II. The petitioner/wife further pleaded that, to cause unnecessary inconvenience to her, the respondent/husband filed F.C.O.P.No.148 of 2024 on the file of the V Additional District Judge-cum-Family Court Judge, Tirupati, under Section 13(1)(ia)(ib) of the Hindu Marriage Act, 1955, seeking dissolution of the marriage and the same is also pending for adjudication.

III. The petitioner/wife would further pleaded that, she being a woman and residing separately at her parents' house at Cherukuwada Village, West Godavari District, it is very difficult for her to travel at a distance of more than 400 Kms from Cherukuwada Village to Tirupati to attend the divorce case proceedings without any male support and that she was constrained to file the present petition seeking to withdraw the F.C.O.P.No.148 of 2024 on the file of the V Additional District Judge- cum-Family Court Judge, Tirupati and transfer the same to the Senior Civil Judge, Tanuku, West Godavari District.

3. Learned counsel for the respondent would contend that, the respondent/husband herein has been residing at Chennai, working as a private employee and his mother is aged about 70 years is depending upon him and she further contend that there are no grounds to consider the request made by the petitioner/wife herein and the preset Transfer Civil Miscellaneous Petition may be dismissed.

4. Heard Sri K. V. L. Narasimha Rao, learned counsel for the petitioner and Smt. Sridevi Jampani, learned counsel for the respondent.

5. Perused the material available on record.

6. The material on record prima facie goes to show that, the petitioner/wife has been residing separately at her parents' house at Cherukuwada Village, West Godavari District. She has instituted three (3) cases i.e., 498-A, Maintenance Case & Domestic Violence case against the respondent/husband herein and the aforesaid cases are pending for adjudication before the competent Courts at Tanuku, West Godavari District and the respondent/husband herein is also

attending the case proceedings before the competent Courts at Tanuku. The material on record further reveals that the respondent/husband has filed F.C.O.P.No.148 of 2024 on the file of the V Additional District Judge-cum-Family Court Judge, Tirupati, under Section 13(1)(ia)(ib) of the Hindu Marriage Act, 1955, seeking dissolution of the marriage. The contention of the learned counsel for the petitioner is that, the petitioner/wife is residing separately at her parents' house at Cherukuwada Village, West Godavari District, the distance between the Cherukuwada Village and Tirupati is more than 400 kms, since the petitioner being a woman and depending upon her parents, it is very difficult for her to travel from Cherukuwada Village to Tirupati to attend the divorce case proceedings filed by the respondent/husband herein, which is pending before the V Additional District Judge-cum-Family Court Judge, Tirupati, on each and every adjournment without any male support and that she was constrained to file the present transfer petition. It is not the case of either of the parties that they are residing at Tirupati. Admittedly, the respondent/husband has been residing at Chennai and is working as a private employee, which is undisputed by the petitioner herein.

7. The Apex Court in a case of *GEETA HEERA Vs HARISH CHANDER HEERA* 1, held by considering the fact that "if a wife does not have sufficient funds to visit the place where the divorce petition is filed by her husband, then the transfer petition filed by the wife may be allowed."

8. The Apex Court in a case of *N.C.V. Aishwarya Vs A.S.Saravana Karthik Sha*2held as follows:

"9. The cardinal principles for exercise of power under Section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or other proceeding. In matrimonial matters, wherever Courts are called upon to consider the plea of transfer, the Courts have to take into consideration the economic soundness of both the parties, the social strata of the spouses and their behavioural pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to life. Given the prevailing socio- economic paradigm in the Indian society, generally, it is the wife's convenience which must be looked at while considering transfer."

9. On considering the submissions made by the learned counsel appearing for both sides and in view of the ratio laid down in the aforesaid case laws and on considering the facts and circumstances of the case, that in (2000) 10 SCC 304 2022 LiveLaw (SC) 627 matrimonial proceedings, the convenience of the wife has to be taken into consideration than that of the inconvenience of the husband. Therefore, I am of the considered view that there are justifiable grounds to consider the request made by the petitioner/wife, seeking to withdraw the F.C.O.P.No.148 of 2024 on the file of the V Additional District Judge-cum-Family Court Judge, Tirupati and transfer the same to the Senior Civil Judge, Tanuku, West Godavari District.

10. Considering the submissions made by the learned counsel for the respondent that, the respondent/husband herein has been residing at Chennai, Tamilnadu State and working as a private employee. The personal appearance of the respondent/husband herein i.e., the petitioner in F.C.O.P.No.148 of 2024 on the file of the V Additional District Judge-cum- Family Court Judge,

Tirupati, has been dispensed with before the transferee Court i.e., Senior Civil Judge, Tanuku, West Godavari District, "except on the days when his presence is required as per law", before the said Court.

11. In the result, the Transfer Civil Miscellaneous Petition is allowed and F.C.O.P.No.148 of 2024 on the file of the V Additional District Judge-cum- Family Court Judge, Tirupati, is hereby withdrawn and transferred to the Senior Civil Judge Court at Tanuku, West Godavari District. The learned V Additional District Judge-cum-Family Court Judge, Tirupati, shall transmit the case record in F.C.O.P.No.148 of 2024 to the Senior Civil Judge Court at Tanuku, West Godavari District, duly indexed as expeditiously as possible preferably within a period of two (02) weeks from the date of receipt of a copy of the order. The personal appearance of the respondent herein i.e., the petitioner in F.C.O.P.No.148 of 2024 on the file of the V Additional District Judge-cum-Family Court Judge, Tirupati, has been dispensed with before the transferee Court i.e., Senior Civil Judge Court at Tanuku, West Godavari District, "except on the days when his presence is required as per law". Both the parties are directed to appear before the Senior Civil Judge Court at Tanuku, West Godavari District, on 08.05.2025, at 10.30 a.m. There shall be no order as to costs.

As a sequel, miscellaneous petitions, if any pending and the Interim order granted earlier, if any, shall stand closed.

19.02.2025 CVD JUSTICE V. GOPALA KRISHNA RAO Date: